

Page No.# 1/5 vs Shri Kantish Dutta on 14 May, 2025

Author: Devashis Baruah

Bench: Devashis Baruah

Page No.# 1/5

GAHC010105562023

2025:GAU-AS:6018

THE GAUHATI HIGH COURT
(HIGH COURT OF ASSAM, NAGALAND, MIZORAM AND ARUNACHAL PRADESH)

Case No. : Tr.P.(C)./44/2023

RUPASHREE DUTTA
DAUGHTER OF SRI RANJIT DUTTA,
WIFE OF SRI KANTISH DUTTA,
VILLAGE- GHARMURA PART-I,
P.S- RAMNATHPUR,
POST OFFICE- GHARMURA- 788162,
DISTRICT- HAILAKANDI, ASSAM.

VERSUS

SHRI KANTISH DUTTA
SON OF KRIPAMOY DUTTA,
VILLAGE- LALARCHAK, P.O. LALARCHAK,
P.S.- KARIMGANJ,
DISTRICT- KARIMGANJ, ASSAM.

For the petitioner (s) : Ms. S. Dasgupta, Advocate
For the respondent (s) : Mr. R. C. Paul, Advocate

BEFORE
HON'BLE MR. JUSTICE DEVASHIS BARUAH
ORDER

14.05.2025 This is an application under Section 24 of the Code of Civil Procedure, 1908 for transfer of Title Suit (Restitution) Case No.5/2023 pending before the Court of the learned District Judge, Karimganj to the Court of the learned District Judge, Hailakandi.

2. The brief facts of the instant case are that the petitioner married to the respondent on 15.12.2018 as per Hindu rites and rituals at Indraprastha Vivah Bhawan at Silchar, Cachar. The petitioner

thereafter went to her matrimonial home situated at Lalarchak village in Karimganj district and started her conjugal life with the respondent. Out of their wedlock, a girl child was born to them. It is alleged that after the birth of the girl child, difference of opinion and disturbances started between the parties and the respondent along with his family members started torturing the petitioner on the ground of giving birth to a female child instead of a male child. It is further alleged that at the instigation of the family members of the respondent, he started torturing the petitioner both mentally and physically on the ground that the parents of the petitioner could not fulfill the demand of dowry as per the satisfaction of the respondent and his family members. It is the further case of the petitioner that the respondent at the instigation of his parents demanded Rs.2,00,000/- as financial assistance from the father of the petitioner for setting up/expanding his jewelry business and as the father of the petitioner could not pay the said amount, the respondent and his family members started torturing her Page No.# 3/5 inhumanly and finally on 02.09.2022, the respondent in connivance of his family members drove the petitioner out of her matrimonial home along with her girl child keeping all the belonging of the petitioner with the respondent at Karimganj.

3. Finding no other alternative, the petitioner along with her minor daughter aged about 3 years came back to her parental home and presently she has been living with her parents. It is stated that the respondent is not bothered at all to provide any kind of assistance to the petitioner and her minor daughter. Thereafter, the respondent filed the Title Suit (Restitution) No.5/2023 on 16.03.2023 under Section 9 of the Hindu Marriage Act, 1955 for restitution of conjugal rights with the petitioner in the Court of the learned District Judge, Karimganj alleging some false and concocted story.

4. The petitioner received notice of the said Title Suit (Restitution) No.5/2023 in the first part of April, 2023.

5. The petitioner thereafter filed an application under Sections 12, 18, 19, 20 & 22 of the Protection of Women from Domestic Violence Act, 2005 on 03.05.2023 against the respondent and his family members pending in the Court of the learned Judicial Magistrate, First Class, Hailakandi which was registered as D.V. Case No.43/2023 and another application under Section 125 of Page No.# 4/5 the Code of Criminal Procedure on 04.05.2023 which was registered as MR Case No.37/2023 pending in the Court of the learned Chief Judicial Magistrate, Hailakandi.

6. The learned counsel for the petitioner submitted that the petitioner is required to travel a distance of 160 Kms. from Gharmura village, Hailakandi which is the home town of the petitioner to Karimganj and it takes more than 5 hours to travel by bus to Karimganj and for the petitioner it is impossible to travel along with her minor daughter for 10 hours in a day and accordingly it is difficult for her to contest the proceedings, i.e. Title Suit (Restitution) No.5/2023 at Karimganj district.

7. I have heard the learned counsels appearing on behalf of the parties.

8. Considering the above and also taking into account that the petitioner is a lady and she would have to travel 10 hours in a day from Gharmura village, Hailakandi by bus to Karimganj along with

her minor daughter, it is the opinion of this Court that allowing the proceedings of Title Suit (Restitution) No.5/2023 to continue at Karimganj would be difficult for the petitioner to appear on each and every date to contest the case. This Court is also of the opinion that ends of justice would be met if Title Suit (Restitution) Case No.5/2023 pending before the Court of the Page No.# 5/5 learned District Judge, Karimganj is transferred to the Court of the learned District Judge, Hailakandi.

9. Accordingly, the proceedings in Title Suit (Restitution) Case No.5/2023 is transferred from the Court of the learned District Judge, Karimganj is transferred to the Court of the learned District Judge, Hailakandi.

10. The parties herein are directed to appear before the Court of the learned District Judge, Hailakandi on 16.06.2025. The petitioner shall file her written statement on the said date without fail.

11. The Court of the learned District Judge, Karimganj is directed to forthwith transfer the records of Title Suit (Restitution) Case No.5/2023 to the Court of the learned District Judge, Hailakandi so that the records are received by the learned District Judge, Hailakandi prior to the next date fixed.

12. The Registry is directed to intimate both the Courts below about the instant order.

13. With the above observations and directions, the instant petition stands allowed.

JUDGE Comparing Assistant